

Property and Personhood

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Property and Personhood*

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This article explores the relationship between property and personhood, a relationship that has commonly been both ignored and taken for granted in legal thought. The premise underlying the personhood perspective is that to achieve proper self-development—to be a *person*—an individual needs some control over resources in the external environment. The necessary assurances of control take the form of property rights. Although explicit elaboration of this perspective is wanting in modern writing on property, the personhood perspective is often implicit in the connections that courts and commentators find between property and privacy¹ or between property and liberty.² In addition to its power to explain certain aspects of existing schemes of property entitlement, the personhood perspective can also serve as an explicit source of values for making moral distinctions in property disputes, and hence for either justifying or criticizing current law.

Almost any theory of private property rights can be referred to some notion of personhood. The theory must address the rights accruing to individual persons, and therefore necessarily implicates the nature of the entity to which they accrue. It is not surprising that personhood has played a part in property theories all along the political spectrum. Conservatives rely on an absolute conception of prop-

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1. The fourth amendment, which protects individuals' "houses, papers and effects" (as well as "persons") from unreasonable search and seizure, is interpreted by the Supreme Court as a form of privacy protection. *Katz v. United States*, 389 U.S. 347 (1967). See text accompanying notes 134-62 *infra*.

2. "[T]he dichotomy between personal liberties and property rights is a false one In fact, a fundamental interdependence exists between the personal right to liberty and the personal right in property. Neither could have meaning without the other. That rights in property are basic civil rights has long been recognized." *Lynch v. Household Finance Corp.*, 405 U.S. 538, 552 (1972).

erty as sacred to personal autonomy. Communitarians believe that changing conceptions of property reflect and shape the changing nature of persons and communities. Welfare rights liberals find entitlement to a minimal level of resources necessary to the dignity of persons even when the entitlement must curtail the property rights of others. This article does not emphasize how the notion of personhood might figure in the most prevalent traditional lines of liberal property theory: the Lockean labor-desert theory, which focuses on individual autonomy, or the utilitarian theory, which focuses on welfare maximization.³ It rather attempts to clarify a third strand of liberal property theory that focuses on personal embodiment or self-constitution in terms of "things." This "personhood perspective" corresponds to, or is the dominant premise of, the so-called personal-ity theory of property. Two main functions of any property theory are the general justification of property rights and their delineation. My purpose here is to consider these two functions from the perspective of personhood. But since a systematic general justification of property rights involves other concerns not within the scope of this article, I will concentrate on the latter function: exploring how the personhood perspective can help decide specific disputes between rival claimants. Positive analysis will attempt to demonstrate that the personhood perspective has been reflected in some past legal decisions; normative analysis will attempt to show how some legal decisions are justified in light of the personhood perspective and how some are not.

In what follows I shall discuss the personhood perspective as Hegel developed it in *Philosophy of Right*,⁴ trace some of its later per-

3. The personality theory, the labor theory, and the utilitarian theory are respectively associated with Hegel, Locke, and Bentham. See G. HEGEL, *PHILOSOPHY OF RIGHT* (T. Knox trans. 1821); J. LOCKE, *SECOND TREATISE OF GOVERNMENT* (New York 1952) (6th ed. London 1764); J. BENTHAM, *THEORY OF LEGISLATION* (R. Hildreth trans. 1840) (1st ed. 1802). The sociobiological/psychological "territorial imperative" theory may be a fourth type stemming roughly from Darwin and Freud. See S. FREUD, *Civilization and Its Discontents*, in 21 STANDARD EDITION OF THE COMPLETE PSYCHOLOGICAL WORKS OF SIGMUND FREUD 111-14 (J. Strachey ed. 1964); see generally M. LEVINE, *PROPERTY AS AN IDEA AND A PROCESS* § 1(b)(3), at 66-100 (tentative ed. 1975).

Locke's theory has long been defended or characterized by modern writers as a labor-desert theory. One must somehow *deserve* to own items mixed with one's labor, rather than simply dissipate one's labor. See, e.g., R. NOZICK, *ANARCHY, STATE AND UTOPIA* 175 (1974) (Nozick's example: If I empty a can of tomato juice into the ocean, do I own the ocean?). Bentham's theory has been reincarnated in the economic analysis of law. See, e.g., R. POSNER, *ECONOMIC ANALYSIS OF LAW* (2d ed. 1977); Demsetz, *Toward A Theory of Property Rights*, 57 AM. ECON. REV. 347 (1967).

4. G. HEGEL, *supra* note 3.

mutations and entanglements with other perspectives on property, and try to develop a contemporary view useful in the context of the American legal system. Part I presents an intuitive philosophical outline of the personhood perspective and how it figures in the justification of property rights. Part II presents various positions on the appropriate definition of a "person." Part III then distinguishes Hegel's concept of persons from the intuitive view discussed in Part I, but identifies some of his insights as useful in developing the idea of property for personhood. Part IV shows that the personhood perspective provides a moral basis for protecting some rights more stringently than others in the context of a legal system. Part V surveys a range of legal problems from the viewpoint of property for personhood. Of particular interest is the way that the personhood property perspective cuts across many different fields of law, as seemingly disparate as criminal procedure and freedom of expression. Part VI concludes that a right to property for personhood should be recognized.

I. PROPERTY FOR PERSONHOOD: AN INTUITIVE VIEW

Most people possess certain objects they feel are almost part of themselves. These objects are closely bound up with personhood because they are part of the way we constitute ourselves as continuing personal entities in the world. They may be as different as people are different, but some common examples might be a wedding ring, a portrait, an heirloom, or a house.

One may gauge the strength or significance of someone's relationship with an object by the kind of pain that would be occasioned by its loss. On this view, an object is closely related to one's personhood if its loss causes pain that cannot be relieved by the object's replacement.⁵ If so, that particular object is bound up with the holder. For instance, if a wedding ring is stolen from a jeweler, insurance proceeds can reimburse the jeweler, but if a wedding ring is stolen from a loving wearer, the price of a replacement will not restore the status quo—perhaps no amount of money can do so.

The opposite of holding an object that has become a part of one-

5. Economic language, though awkward in this realm, would say that the holder of such an object has a large amount of consumer surplus that would be very difficult to ascertain accurately. The holder typically would not think about the object in monetary terms at all. Applying economic reasoning to things of high sentimental value presents difficulties because such things are likely to represent a large proportion of a person's total "wealth." See Kennedy, *Cost-Benefit Analysis of Entitlement Problems: A Critique*, 33 STAN. L. REV. 387 (1981). See also Baker, *The Ideology of the Economic Analysis of Law*, 5 PHIL. & PUB. AFF. 1 (1975).

self is holding an object that is perfectly replaceable with other goods of equal market value. One holds such an object for purely instrumental reasons. The archetype of such a good is, of course, money, which is almost always held only to buy other things. A dollar is worth no more than what one chooses to buy with it, and one dollar bill is as good as another. Other examples are the wedding ring in the hands of the jeweler, the automobile in the hands of the dealer, the land in the hands of the developer, or the apartment in the hands of the commercial landlord. I shall call these theoretical opposites—property that is bound up with a person and property that is held purely instrumentally—personal property and fungible property respectively.⁶

Why refer these intuitions to personhood at all? It may appear that the category I call personal property could be described as simply a category of property for personal autonomy or liberty. Property for personal autonomy or liberty might be a class of objects or resources necessary to be a person or whose absence would hinder the autonomy or liberty attributed to a person. But there is something more in an affirmative notion of an individual being bound up with an external "thing." If autonomy is understood as abstract rationality and responsibility attributed to an individual, it fails to convey this sense of connection with the external world. Neither does liberty, if understood in the bare sense of freedom from interference by others with autonomous choices regarding control of one's external environment.

Once we admit that a person can be bound up with an external "thing" in some constitutive sense, we can argue that by virtue of this connection the person should be accorded broad liberty with respect to control over that "thing." But here liberty follows from property for personhood; personhood is the basic concept, not liberty. Of course, if liberty is viewed not as freedom from interference, or "negative freedom," but rather as some positive will that by acting on the external world is constitutive of the person, then liberty comes closer to capturing the idea of the self being intimately bound up with

6. The distinction is not simply between consumer property and commercial property. While it is likely that most commercial property is not property for personhood but rather held instrumentally, a great deal of consumers' property is also not property for personhood in the special direct sense I am trying to bring out. Many items—e.g., pots and pans, lawn mowers, light bulbs—can also be characterized as valued instrumentally, not in the same sense as something one holds only for exchange, but in the related sense that they are held in order to perform a service and it is the service that is substantively valued.

things in the external world.⁷

It intuitively appears that there is such a thing as property for personhood because people become bound up with "things." But this intuitive view does not compel the conclusion that property for personhood deserves moral recognition or legal protection, because arguably there is bad as well as good in being bound up with external objects. If there is a traditional understanding that a well-developed person must invest herself to some extent in external objects, there is no less a traditional understanding that one should not invest oneself *in the wrong way* or *to too great an extent* in external objects. Property is damnation as well as salvation, object-fetishism as well as moral groundwork. In this view, the relationship between the shoe fetishist and his shoe will not be respected like that between the spouse and her wedding ring. At the extreme, anyone who lives only for material objects is considered not to be a well-developed person, but rather to be lacking some important attribute of humanity.⁸

II. THE ROLE OF THE CONCEPT OF PERSON

The intuitive view of property for personhood just stated is wholly subjective: self-identification through objects varies from person to person. But if property for personhood cannot be viewed as other than arbitrary and subjective, then personal objects merely represent strong preferences, and to argue for their recognition by the legal system might collapse to a simple utilitarian preference summing. To avoid this collapse requires objective criteria differentiating good from bad identification with objects in order to identify a realm of personal property deserving recognition.⁹ The necessary objective

7. The distinction is between conceptions of negative freedom ("freedom from"), characteristic of English liberalism, and positive freedom ("freedom to"), typical of Hegel's and other continental theorists' views. See I. BERLIN, *TWO CONCEPTS OF LIBERTY* (1958); Berki, *Political Freedom and Hegelian Metaphysics*, 16 POL. STUD. 365, 365 (1968) (Hegel was "not an advocate of 'negative freedom'"). See also L. TRIBE, *AMERICAN CONSTITUTIONAL LAW* 889 (1978). The principal difference between the theories of Locke and Hegel is that for Locke the source of entitlement is labor, whereas for Hegel it is will. The Lockean individual has a natural right to property and broad negative freedom regarding that right. Hegel's notion of rights—autonomy or freedom in the positive sense—is logically bound up with entitlement to external objects. See text accompanying notes 49–73 *infra*. The historical importance of this distinction between negative and positive freedom is that Hegel's intellectual descendants tend to consider property rights as socially based, while Locke's followers tend to remain individualistic.

8. See text accompanying notes 41–48 *infra*.

9. The problem of bridging the gap between subjective and objective views of a person is inherent in trying to accord persons their moral deserts by means of a political system. Indeed, the subjective/objective dichotomy may be inherent in the nature of human individ-

wrongheaded because they all derive from the individualistic world-view that flowered in western society with the industrial revolution. In a society in which the only human entity recognized in social intercourse is some aggregate like the family or clan, there could not be such intense philosophical attention to the biological individual and its ontological, psychological, moral and political status. In view of the individualist roots of those theories of the person, it comes as no surprise that thinkers who wish to progress from an individualist to a communitarian world-view are impatient with them. Communitarians see the myth of the self-contained "man" in a state of nature as politically misleading and dangerous. Persons are embedded in language, history, and culture, which are social creations;²⁷ there can be no such thing as a person without society.

For the sake of simplicity, I shall initially confine my inquiry to the types of the person posited by the more traditional, individual-oriented theories. But the communitarian critique reminds us that the idea of the person in the abstract should not be pushed beyond its usefulness. In what follows I shall on occasion attempt to pay attention to the role of groups both as constituted by persons and as constitutive of persons.

B. *Property and Theories of the Person*

Bypassing for the moment Kantian rationality and Lockean memory, let us begin with the person conceived as bodily continuity. Locke says that "every Man has a *Property* in his own *Person*," from which it immediately follows that "[t]he *Labour* of his Body, and the *Work* of his hands . . . are properly his."²⁸ Though, as we have seen, Locke elsewhere considers the person as reflective consciousness and memory, he may well mean here that one literally owns one's limbs and hence must own their product.²⁹ If not, perhaps property in one's person should be understood to mean simply that an individual has an entitlement to be a person or to be treated as a person. This would probably include the right to self-preservation on which Locke bases the right to appropriate.³⁰

27. See, e.g., J. Habermas, *Historical Materialism and the Development of Normative Structures*, in *COMMUNICATION AND THE EVOLUTION OF SOCIETY* 95, 100 (T. McCarthy trans. 1979) (linguistic development contributes to ego development).

28. J. LOCKE, *supra* note 3, ch. V, § 27.

29. As Macpherson and others have pointed out, to say "must" at this point requires a capitalist mentality. See C. MACPHERSON, *THE POLITICAL THEORY OF POSSESSIVE INDIVIDUALISM: HOBBS TO LOCKE* 13 (1962).

30. J. LOCKE *supra* note 3, ch. V, § 25.

If it makes sense to say that one owns one's body, then, on the embodiment theory of personhood, the body is quintessentially personal property because it is literally constitutive of one's personhood. If the body is property, then objectively it is property for personhood. This line of thinking leads to a property theory for the tort of assault and battery: Interference with my body is interference with my personal property. Certain external things, for example, the shirt off my back, may also be considered personal property if they are closely enough connected with the body.³¹

The idea of property in one's body presents some interesting paradoxes. In some cases, bodily parts can become fungible commodities, just as other personal property can become fungible with a change in its relationship with the owner: Blood can be withdrawn and used in a transfusion; hair can be cut off and used by a wigmaker; organs can be transplanted. On the other hand, bodily parts may be too "personal" to be property at all. We have an intuition that property necessarily refers to something in the outside world, separate from oneself. Though the general idea of property for personhood means that the boundary between person and thing cannot be a bright line, still the idea of property seems to require some perceptible boundary, at least insofar as property requires the notion of thing, and the notion of thing requires separation from self. This intuition makes it seem appropriate to call parts of the body property only after they have been removed from the system.³²

Another paradox is whether replacing any of my body parts with fungible plastic makes me a different person, and whether the plastic parts once inserted should be considered personal property or something else.³³ The plastic parts question represents the converse of the problem concerning the sale of natural organs. The natural organ becomes fungible property when removed from the body, but remains purely personal, thus seemingly not property, while it is still inside the body. Conversely, plastic parts are fungible when sold to

31. Hence, a touching of one's clothes or cane, etc., can be a battery. W. PROSSER, *LAW OF TORTS* § 9 (4th ed. 1971).

32. Whether society should permit bodily parts to become commodities is controversial. See *A Brazilian Tragedy—Desperation: Selling Your Eye, Kidney*, L.A. TIMES, Sept. 10, 1981, § I, at 1, col. 1; *Man Desperate for Funds: Eye for Sale at \$35,000*, L.A. TIMES, Feb. 1, 1975, § II, at 1, col. 3. See generally G. CALABRESI & P. BOBBIT, *TRAGIC CHOICES* (1978) (reasons society might disallow such transactions).

33. The first inquiry raises the point that the parameters of personal identity may be scalar rather than binary; but that we may leave to the philosophers of personal identity. See, e.g., Parfit, *Later Selves and Moral Principles*, in *PHILOSOPHY & PERSONAL RELATIONS* 137 (A. Montefiore ed. 1973).

the hospital, but once inserted they are no longer fungible, and should be considered as the natural organs they replace, hence perhaps no longer property at all.

Next, let us consider the person as individual rationality, the Kantian person.³⁴ If persons are bare abstract rational agents, there is no necessary connection between persons and property. Therefore, Kantian rationality cannot yield an objective theory of personal property. One might introduce external objects to a population of Kantian persons in the state of nature or in Rawls's original position³⁵ to see how they divide things among themselves (and so it might be hard to think of justice among these persons without property), but object relationships are still not a necessary corollary to the concept of personhood in this view.³⁶

In Locke's view of persons as continuing self-consciousness characterized by memory, the external world may enter the concept of person. Memory is made of relationships with other people and the world of objects. Much of the property we unhesitatingly consider personal—for example, family albums, diaries, photographs, heirlooms, and the home—is connected with memory and the continuity of self through memory. But the pure Lockean conception of personhood does not necessarily imply that object relations (and the expected continuity of those relations that property gives) are essential to the constitution of persons, because that conception is disembodied enough not to stress our differentiation from one another. It is possible to hold the Lockean conception and still believe that memory is part of an immaterial essence of the person that has no inherent connection to the material world. But in a neo-Lockean view rejecting such dualism and making self-differentiation important, it seems object relations are necessary and central to self-constitution.³⁷

34. See text accompanying notes 12–13 *supra*.

35. See J. RAWLS, *supra* note 13, at 17–22.

36. Since objects do not become bound up with the person considered as abstract rationality, one might expect a tendency of Kantian rational persons to treat all property as fungible. These are the people in Rawls's original position, or, in Michelman's quasi-Rawlsian analysis of just compensation law, the "patient, far-seeing, reasonable folk who inhabit the fairness model." Michelman, *Property, Utility, and Fairness: Comments on the Ethical Foundations of "Just Compensation" Law*, 80 HARV. L. REV. 1165, 1224 (1967).

37. The process by which a person develops object relations and an appropriate differentiation from the environment of other people and things is the subject of large portions of psychological and psychoanalytic theory. See, e.g., H. KOHUT, *THE ANALYSIS OF THE SELF* (1971); D. WINNICOTT, *Transitional Objects and Transitional Phenomena*, in *COLLECTED PAPERS* 229 (1958); Steele & Jacobsen, *From Present to Past: The Development of the Freudian Theory*, 5 INT'L REV. PSYCHOANALYSIS 393 (1977).

Finally, let us consider the view that what is important in personhood is a continuing character structure encompassing future projects or plans, as well as past events and feelings. The general idea of expressing one's character through property is quite familiar. It is frequently remarked that dogs resemble their masters; the attributes of many material goods, such as cars and clothes, can proclaim character traits of their owners. Of course, many would say that becoming too enthralled with property takes away time and energy needed to develop other faculties constitutive of personhood.³⁸ But, for example, if you express your generosity by giving away fruits that grow in your orchard, then if the orchard ceases to be your property, you are no longer able to express your character.³⁹ This at least suggests that property may have an important relationship to certain character traits that partly constitute a person.

This view of personhood also gives us insight into why protecting people's "expectations" of continuing control over objects seems so important. If an object you now control is bound up in your future plans or in your anticipation of your future self, and it is partly these plans for your own continuity that make you a person, then your personhood depends on the realization of these expectations. This turn to expectations might seem to send property theory back toward Bentham, who declared that "the idea of property consists in an established expectation."⁴⁰ But this justification for honoring expectations is far from Benthamite, because it applies only to personal property. In order to conclude that an object figuring into someone's expectations is personal, we must conclude both that the person is bound up with the object to a great enough extent, and that the relationship belongs to the class of "good" rather than "bad" object-relations. Hence we are forced to face the problem of fetishism, or "bad" object-relations.

C. *The Problem of Fetishism*

We must construct sufficiently objective criteria to identify close

38. E. M. Forster expressed this view: "I shall wall in and fence out until I really taste the sweets of property. Enormously stout, endlessly avaricious, pseudo-creative, intensely self-ish, I shall weave upon my forehead the quadruple crown of possession" E. FORSTER, *My Wood*, in ABINGER HARVEST 23, 26 (1936).

39. The connection between certain kinds of property rights and the person viewed as continuing character structure was recognized by Bernard Bosanquet in 1895. *See* B. BOSANQUET, *The Principle of Private Property*, in ASPECTS OF THE SOCIAL PROBLEM 308, 311, 314, (1895).

40. J. BENTHAM, *supra* note 3, at 112.

object relations that should be excluded from recognition as personal property because the particular nature of the relationship works to hinder rather than to support healthy self-constitution. A key to distinguishing these cases is "healthy." We can tell the difference between personal property and fetishism the same way we can tell the difference between a healthy person and a sick person, or between a sane person and an insane person.⁴¹ In fact, the concepts of sanity and personhood are intertwined: At some point we question whether the insane person is a person at all.⁴² Using the word "we" here, however, implies that a consensus exists and can be discerned. Because I seek a source of objective judgments about property for personhood, but do not wish to rely on natural law or simple moral realism,⁴³ consensus must be a sufficient source of objective moral criteria—and I believe it can be, sometimes, without destroying the meaning of objectivity.⁴⁴ In the context of property for personhood, then, a "thing" that someone claims to be bound up with nevertheless should not be treated as personal vis-à-vis other people's claimed rights and interests when there is an objective moral consensus that to be bound up with that category of "thing" is inconsistent with personhood or healthy self-constitution.

Judgments of insanity or fetishism are both made on the basis of the minimum indicia it takes to recognize an individual as one of us.⁴⁵ There does not seem to be the same reason to restrain a private

41. See Moore, *Legal Conceptions of Mental Illness*, in MENTAL ILLNESS: LAW & PUBLIC POLICY 25 (B. Brody & H. Engelhardt eds. 1980); Morse, *Crazy Behavior, Morals, and Science: An Analysis of Mental Health Law*, 51 S. CAL. L. REV. 527 (1978).

42. See J. MURPHY, *Incompetence and Paternalism*, in RETRIBUTION, JUSTICE AND THERAPY 165 (1979); P. STRAWSON, *Freedom and Resentment*, in FREEDOM AND RESENTMENT 1 (1974).

43. Cf. Moore, *Moral Reality* (1981) (unpublished manuscript on file with Stanford Law Review) (arguing that legal decisions can and should be made on the basis of moral reality).

44. Whether any kind of consensus can ever be a source of objective moral judgments is the subject of philosophical dispute. I have argued elsewhere that our present state of philosophical enlightenment on the subject of moral objectivity seems to be consonant with the argument that "deep" moral consensus—not mere social consensus, or subjective preference counting—should be treated as objective for political purposes. Radin, *Cruel Punishment and Respect for Persons: Super Due Process for Death*, 53 S. CAL. L. REV. 1143, 1176 n.109 (1980); Radin, *The Jurisprudence of Death: Evolving Standards for the Cruel and Unusual Punishments Clause*, 126 U. PA. L. REV. 989, 1030-42 (1978). See Rawls, *Kantian Constructivism in Moral Theory*, *supra* note 13, at 570-71.

45. There has not been much philosophical analysis of perversion; but see T. NAGEL, *Sexual Perversion*, in MORTAL QUESTIONS 39 (1979). There are varying philosophical approaches to the necessary criteria or indicia for recognizing someone as one of us. For Moore, *supra* note 41, the criterion is rationality, the ability to carry out intelligible rational syllogisms. Drawing out these notions of intelligibility, Morse, *supra* note 41, at 581-90, distin-

fetishist as there would be to restrain an insane person prone to violence against others. But the restraint of denying the fetishist's property special recognition as personal is less severe than that imposed on someone deemed violently insane. To refuse on moral grounds to call fetishist property personal is not to refuse to call it property at all. The immediate consequence of denying personal status to something is merely to treat that thing as fungible property, and hence to deny only those claims that might rely on a preferred status of personal property.⁴⁶

A broader aspect of the problem of fetishism is suggested by Marx's "fetishism of commodities."⁴⁷ Marx attributed power in a market society to the commodities that form the market. He believed that people become subordinate in their relations to these commodities. In other words, under capitalism property itself is anti-personhood.

Even if one does not accept that all capitalist market relations with objects destroy personhood, it is probably true that most people view the caricature capitalist with distaste. Most people might consider her lacking in some essential attribute of personhood, such as the capacity to respect other people or the environment. If there is some moral cut-off point, beyond which one is attached too much or in the wrong way to property, the extent to which someone may emulate the caricature capitalist and still claim property for personhood is not clear, but is not unlimited. Although the caricature capitalist cannot express her nature without control over a vast quantity of things and other people, her need for this control to constitute herself the complete capitalist could not objectively be recognized as personal property because at some point there is an objective moral consensus that such control is destroying personhood rather than fostering it.⁴⁸

guishes "crazy urges" and "crazy reasons." Strawson, *supra* note 42, speaks of responses to entities in terms of personal or objective attitudes. Dennett, *supra* note 23, speaks of the indicia of "intentional systems."

46. What sort of claims might be associated with a preferred status of personal property is discussed in Parts IV-V *infra*.

47. K. MARX, CAPITAL ch. I (S. Moore & E. Aveling trans. 1889).

48. If we deny the caricature capitalist the claim that her empire is personal, that still leaves her with an empire of fungible property; and Marx would probably be quick to point out that its fungible character in the hands of the capitalist makes it no less oppressive to the property-less. Thus, the hypothetical caricature capitalist brings up a further aspect of the fetishism problem: the effect of one person's claimed property rights on the personhood of others. The extent to which a liberal government may permit private individuals to engage in practices which impinge on the personhood of others is a difficult question of political theory.

erty rules) than others (either liability rules or no entitlement), either as between individuals or between individuals and the government.¹⁰⁰ Though much might be said about the other distinctions, especially the criteria for inalienability, discussion here will be confined primarily to property rules versus liability rules.¹⁰¹

C. *The Personhood Dichotomy*

The personhood dichotomy comes about in the following way: A general justification of property entitlements in terms of their relationship to personhood could hold that the rights that come within the general justification form a continuum from fungible to personal. It then might hold that those rights near one end of the continuum—fungible property rights—can be overridden in some cases in which those near the other—personal property rights—cannot be. This is to argue not that fungible property rights are unrelated to personhood, but simply that distinctions are sometimes warranted depending upon the character or strength of the connection. Thus, the personhood perspective generates a hierarchy of entitlements: The more closely connected with personhood, the stronger the entitlement.¹⁰²

100. Of course, such an exercise is trivial to thoroughgoing ethical subjectivists; in the Calabresi-Melamed terminology, these reasons are mere "moralisms," just another word for strong subjective preferences. Calabresi & Melamed, *supra* note 93, at 1111-13.

101. Distinguishing "inalienability rules" from "property rules" is an important problem that implicates the nature of contract, because the issue is when the law ought to disallow or void someone's attempt to relinquish an item voluntarily; contract, as well as property, may be perceived based on personhood. See, e.g., Kronman, *Contract Law and Distributive Justice*, 89 YALE L.J. 472 (1980). This problem is beyond the scope of the present article, but a few words are necessary. First, I find convincing the argument that inalienability attaches to personhood itself, cf. Hegel's argument, *supra* note 59, and probably to rights that are too close to personhood to think of as property. Easy examples of contracts that would be disallowed would be selling oneself into slavery or agreeing to commit suicide; less easy would be contracts to sell one's child or one's kidney. Second, more problematically, inalienability might also attach to rights that are not too close to personhood to be considered property, but which are at the personal end of the metaphorical continuum running from personal to fungible. This would require an objective moral consensus about the protected objects. See text accompanying notes 9-48 *supra*. In addition, the more an object seems to be personal, the more one might scrutinize the "voluntariness" of the transaction by which it is relinquished. The analysis becomes entwined with wealth distribution arguments, since some theorists would not consider choices motivated by dire economic necessity "voluntary" enough to validate a transaction relinquishing a clearly personal item. Finally, there may be classes of transactions which should be presumed invalid (hence categories of inalienability) because of the costs of case-by-case investigation and the risk of error against the "involuntary" seller.

102. In this way the dichotomy between personal and fungible property is similar to C. Edwin Baker's distinction between valuing activities substantively (i.e., intrinsically) and valuing them instrumentally. Baker, *Counting Preferences in Collective Choice Situations*, 25 U.C.L.A. L. REV. 381, 393-99 (1978).

Does it make sense to speak of two levels of property, personal and fungible? I think the answer is yes in many situations, no in many others. Since the personhood perspective depends partly on the subjective nature of the relationships between person and thing, it makes more sense to think of a continuum that ranges from a thing indispensable to someone's being to a thing wholly interchangeable with money. Many relationships between persons and things will fall somewhere in the middle of this continuum. Perhaps the entrepreneur factory owner has ownership of a particular factory and its machines bound up with her being to some degree. If a dichotomy telescoping this continuum to two end points is to be useful, it must be because within a given social context certain types of person-thing relationships are understood to fall close to one end or the other of the continuum, so that decisionmakers within that social context can use the dichotomy as a guide to determine which property is worthier of protection.¹⁰³ For example, in our social context a house that is owned by someone who resides there is generally understood to be toward the personal end of the continuum.¹⁰⁴ There is both a positive sense that people are bound up with their homes and a normative sense that this is not fetishistic.¹⁰⁵

Though they all derive from a common central insight, the personhood hierarchy is different from the property dichotomies I cited earlier. It differs from the Marxist distinction between property resting on the labor of others and property resting on one's own labor because it focuses on where a commodity ends up, not where and how it starts out. In addition, it focuses on the person with whom it ends up—on an internal quality in the holder or a subjective relationship between the holder and the thing, and not on the objective arrangements surrounding production of the thing. The same claim can change from fungible to personal depending on who holds it. The wedding ring is fungible to the artisan who made it and now holds it for exchange even though it is property resting on the artisan's own labor. Conversely, the same item can change from fungi-

103. See text accompanying notes 118-62 *infra*.

104. While residences are not specially protected against eminent domain, such legal protections as homesteading and special mortgage redemption rights show a degree of special concern. An economist would tend to find that substantial consumer surplus attaches to people's homes. See, e.g., Ellickson, *Alternatives to Zoning: Covenants, Nuisance Rules, and Fines as Land Use Controls*, 40 U. CHI. L. REV. 681, 735-37 (1973) (suggesting "bonus" system to give approximate compensation for consumer surplus).

105. See Part II *supra*.

ble to personal over time without changing hands. People and things become intertwined gradually.

The personhood hierarchy also does not correspond to the implicit Marxist distinction between "use value" and "exchange value", since some things held for "use value" are still not bound up with personhood. Since Hobhouse's "use/power" distinction seems to be merely an ambiguous amalgam of the two Marxist distinctions just mentioned,¹⁰⁶ it too would not correspond to the personhood dichotomy.

The Calabrese-Melamed distinction between property rules and liability rules is initially positivist; it merely recognizes that some entitlements are harder to extinguish than others.¹⁰⁷ In order to make it take on a moral function, there would be a nice simplicity in hypothesizing that personal property should be protected by property rules and that fungible property should be protected by liability rules. If that were true, much that is now protected by a property rule—for example, property held only for investment—is overprotected. In that respect, the claim would be truly revolutionary. Yet it would not be revolutionary enough for those who think fungible property should not always be protected even by liability rules—for example, when fungible claims of the rich deprive the poor of meaningful opportunities for personhood. But although the problem does not reduce to such nice simplicity, one might claim that *at least* personal property should be protected by property rules.¹⁰⁸

D. *Welfare Rights and A Dichotomy in Property*

The personhood dichotomy in property, by focusing attention on the importance of certain property to self-constitution, can avoid some distortions that might result from justifications in which all entitlements are considered alike.¹⁰⁹

106. See text accompanying notes 88–91 *supra*.

107. See text accompanying notes 93–100 *supra*.

108. The claim that fungible property should not override personhood interests of others is not considered radical when the personhood interest at stake is so close to personhood that we hold it to be inalienable. See note 101 *supra*.

109. All entitlements are treated alike in the economic model. See note 94 *supra*. Economists typically rely on efficiency criteria and not on the perspective of autonomy or personhood in seeking to determine whether certain entitlements should be accorded greater protection than others. See text accompanying notes 97–100 *supra*. In a neo-Lockean natural rights scheme, property rights might swallow up other concerns. Such a scheme might hold that personal rights or civil liberties are derived from property rights, which exist a priori in persons. Once the government has mechanisms for ensuring that people's a priori rights are not violated, whatever pattern of entitlements that results from the voluntary interaction of